

26STCV03686 26STCV03686

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Case Number: 26STCV03686 Hearing Date: September 24, 2026 Dept: 307

19 TENTATIVE RULING 8:30 a.m., Thursday, Sept. 24, 2026

THOMAS

MOURNIAN v. 3408 WEST SUNSET BLVD, LLC, et al. [26STCV03686]

DEFENDANTS

WEST SUNSET BLVD, LLC AND SHAWN G. SILVER'S DEMURRER WITH A MOTION TO STRIKE AS

TO THE SECOND AMENDED COMPLAINT

MEET AND

CONFER: DEFECTIVE Defendants'

counsel declares that he attempted to meet and confer telephonically but did

not receive a response. (Kohanim Decl., ¶

4.)

TIMELINE:

Residential landlord-tenant dispute

Unknown

Date: Plaintiff Thomas Mournian ("Plaintiff") leases a unit at the

residential

property located at 3408 W. Sunset Blvd., Los Angeles, CA 90026 (the "Property"

or the "Unit"). The Property suffers from multiple uninhabitable conditions and

Health and Safety Code violations, including toxic mold and vermin infestations.

5/2025: Defendants

3048 West Sunset Blvd., LLC ("West Sunset") and

Shawn G.

Silver ("Silver") (collectively, "Defendants") take ownership of the Property. Silver

is both the sole owner and a managing officer of West Sunset. Plaintiff begins

to repeatedly notify Defendants of the defects at the Property, including rat

and cockroach infestations, lead, asbestos, and toxic mold. Defendants refuse

to remedy the unsafe conditions.

5/19/2025:

Silver and Jerry Cabrera ("Cabrera"), another managing agent for

Defendants,

falsely represent to Plaintiff and City Housing Inspector Aric Defusco that

Defendants plan to resolve the infestations, trash, and other code violations

found by Inspector Defusco at the Property and that Defendants would make

necessary repairs to the Property.

6/2/2025:

Silver falsely represents to Plaintiff that the City had “cleared all violations”

and the Property was deemed “free from violations,” so Plaintiff was not entitled to rent reductions. Silver further represents that if Plaintiff failed to immediately pay overdue rent, he would be evicted.

6/30/2025:

Silver falsely represents to Plaintiff that the Property had obtained its City

registration renewal and that Defendants had the right to continue collecting rent from tenants under the renewed registration.

7/22/2025:

Silver and Cabrera falsely represent to Plaintiff and City Housing Inspector

Ricardo Bohorquez that issues related to heat, hot water, and water service were “not occurring” on the Property and denied that other tenants were experiencing similar issues.

9/24/2025:

Silver and Cabrera falsely represent to Plaintiff and Inspector Bohorquez

that repairs to the Property's heat, hot water, and water service had been

"completed."

9/25/2025:

Colleen Steffgen ("Steffgen"), another managing agent for

Defendants,

falsely represents to Plaintiff that Defendants had obtained their registration

certificate from the City.

10/23/2025:

Silver and Cabrera falsely represent to Plaintiff and City Housing

Inspector

Michael Barela that Defendants would perform mandated repairs on the Property

to cure the Property's habitability violations.

10/27/2025:

Steffgen falsely represents to Plaintiff that Defendants had

obtained

their registration certification from the City.

11/25/2025:

Silver and Cabrera falsely represent to Plaintiff and Inspector

Bohorquez

that Defendants were making "reasonable efforts" to comply with the City's

orders.

1/20/2025:

Steffgen falsely represents that Defendants had obtained their

registration

certificate from the City.

2/4/2026: Plaintiff files the Complaint. On

5/7/2026, Plaintiff files the First Amended Complaint.[1] The

operative Second Amended Complaint ("SAC"), filed 7/17/2026, alleges causes of

action for:

1. Breach of Warranty of Habitability

(Civil Code section 1941.1)

2. Breach of Warranty of Habitability

(Civil Code section 1942.4)

3. Negligence: Premises Liability

4. Intentional Infliction of

Emotional Distress ("IIED")

5. Breach of Contract

6. Breach of the Covenant of Quiet

Enjoyment

7. Fraud/Deceit/Intentional

Misrepresentations of Fact[2]

3/19/2026: Silver falsely represents to

Plaintiff that the City had “cleared” all violations and demands that Plaintiff

pay additional rent sums under threat of eviction. Silver further falsely

represents that the City “found no evidence of mold” in Plaintiff’s Unit.

However, the City cites habitability violations on the same day, including mold

contamination.

4/9/2026: Silver falsely represents to

Plaintiff and City Housing Inspector Nicholas Diaz that he had inspected

Plaintiff’s Unit and did not detect mold, but no such inspection was ever

performed.

4/16/2026: Steffgen falsely represents to

Plaintiff that Defendants had obtained their registration certificate from the

City.

4/2026: Plaintiff discovers that Defendants had

made no effort to renew the Property’s registration with the City.

6/5/2026: Plaintiff obtains mold testing by a

certified mold inspector, who establishes that Plaintiff’s Unit was

contaminated with extremely high levels of toxic mold at all relevant times. On

the same date, Plaintiff learns from Inspector Diaz that the ceiling of his

Unit was in imminent danger of collapse, which Silver had concealed from

Plaintiff.

8/11/2026: Defendants file this Demurrer and

Motion to Strike as to the SAC, which is followed by Plaintiff's Opposition (9/4/2026).

As of 9/22/2026, no Reply has been received.

TENTATIVE

RULING: DEMURRER OF DEFENDANTS WEST SUNSET BLVD, LLC AND SHAWN G. SILVER is OVERRULED.

MOTION

TO STRIKE OF DEFENDANTS WEST SUNSET BLVD, LLC AND SHAWN G. SILVER'S is DENIED.

I. DEMURRER

— OVERRULED

Defendants demur to ninth cause of action for

fraud in the SAC pursuant to Code of Civil Procedure section 430.10, subd. (e).

The Court

finds that Plaintiff's fraud claim in the SAC is now sufficiently pled. "The

elements of fraud ... are: (a) misrepresentation (false representation,

concealment, or nondisclosure); (b) knowledge of falsity (or "scienter"); (c)

intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e)

resulting damage." (Rattagan v. Uber Technologies, Inc. (2024)

17 Cal.5th 1, 32, quoting Lazar v. Superior Court (1996) 12 Cal.4th

631, 638 (Lazar).) Every element of fraud must be pled with

particularity. (Hills Transportation Co. v. Southwest Forest Ind., Inc. (1968)

266 Cal.App.2d 702, 707.) "The specificity requirement means a

plaintiff must allege facts showing how, when, where, to whom, and by what

means the representations were made, and, in the case of a corporate defendant,

the plaintiff must allege the names of the persons who made the

representations, their authority to speak on behalf of the corporation, to whom

they spoke, what they said or wrote, and when the representation was

made." (Lazar, supra, 12 Cal.4th at p.

645; West v. JPMorgan Chase Bank, N.A. (2013) 214 Cal.App.4th 780,

793.)

Here,

Plaintiff alleges that from May 2025 to the present, Defendants (acting through

Silver and other managing agents including William Lopez, Cabrera, and Steffgen)

made various affirmative false misrepresentations related to the Property's safety

and habitability as well as Defendants' efforts to remediate various code

violations identified by the City. (SAC, at p. 28 ¶ 163, p. 31 ¶ 160, pp. 33-34

¶¶ 162-165, p. 36 ¶ 175.) In the SAC, Plaintiff has now more clearly identified

the specific instances and circumstances of Defendants' fraudulent conduct, including

the following false representations and omissions:

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On

5/19/2025, Silver and Cabrera spoke to Plaintiff in person and misrepresented that Defendants intended to resolve the infestations, trash, and other habitability violations cited by the City and that Defendants would make necessary repairs. (SAC, at p. 29 ¶ 163(a).)

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On

6/2/2025, Silver spoke to Plaintiff in person and misrepresented that the City had “cleared all violations,” that the Property was deemed “free from violations” such that Plaintiff was no longer entitled to rent reductions, and that if Plaintiff failed to immediately pay overdue rent he would be evicted. (Id. at pp. 31-32 ¶ 161(a)-(b).)

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On

6/30/2025, Silver spoke to Plaintiff in person and misrepresents that Defendants had renewed their annual registration with the City and that Defendants had the right to continue collecting rent from tenants under the renewed registration. (Id. at p. 32 ¶ 161(c).)

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On

7/22/2025, Silver and Cabrera spoke to Plaintiff in person and misrepresented that

issues related to heat, hot water, and water service were “not occurring” on

the Property and that other tenants were not experiencing similar issues. (Id.

at p. 29 ¶ 163(b).)

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On

9/24/2025, Silver and Cabrera spoke to Plaintiff in person and misrepresented

that Defendants had “completed” repairs to the Property’s heat, hot water, and

water service. (Id. at p. 29 ¶ 163(c).)

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On

9/25/2025, Steffgen spoke to Plaintiff via telephone conversation and

subsequent emails and misrepresents that Defendants had obtained their

registration certificate from the City. (Id. at p. 32 ¶ 162.)

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On

10/23/2025, Silver and Cabrera misrepresent to Plaintiff Defendants intended to

perform mandated repairs on the Property to cure the Property’s habitability

violations. (Id. at p. 30 ¶ 163(d).)

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On

10/27/2025, Steffgen spoke to Plaintiff via telephone conversation and subsequent emails and misrepresents that Defendants had obtained their registration certification from the City. (Id. at p. 33 ¶ 163.)

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On

11/25/2025, Silver and Cabrera spoke to Plaintiff in person and misrepresented that Defendants were making “reasonable efforts” to comply with the City’s orders. (Id. at p. 30 ¶ 163(e).)

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On

1/20/2025, Steffgen spoke to Plaintiff via telephone conversation and subsequent emails and misrepresents that Defendants had obtained their registration certificate from the City. (Id. at p. 34 ¶ 164.)

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3/19/2026:

Silver spoke to Plaintiff in person and misrepresents that the City had “cleared” all violations on the Property and that the City had “found no evidence of mold” in Plaintiff’s Unit. (Id. at p. 33 ¶ 161 (e)-(f).)

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On

4/9/2026, Silver communicated with Plaintiff via email and misrepresents that he had inspected Plaintiff's Unit and did not detect mold. (Id. at p. 34 ¶ 166.)

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On

4/16/2026, Steffgen spoke to Plaintiff via telephone conversation and subsequent emails and misrepresents that Defendants had obtained their registration certificate from the City. (Id. at p. 34 ¶ 165.)

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On

6/5/2026, Silver fails to disclose to Plaintiff that the Property was in danger of structural collapse due to Defendants' failure to perform repairs, but Plaintiff learns from City Inspector Diaz about the status of the Unit's imminent ceiling collapse. (Id. at p. 35 ¶ 167.)

These amended allegations provide sufficient factual specificity to provide adequate notice to Defendants of the nature and source of the alleged fraud and the scope of Defendants' potential liability for fraud. For example, Plaintiff now

identifies the specific dates, speakers, and means of communication for each representation attributed to Defendants. The SAC adequately identifies how, when, where, and by what means the false representations were made. (See Lazar, supra, 12 Cal.4th at p. 645.) Plaintiff also differentiates the specific fraudulent conduct by Silver as an individual compared to the representatives of West Sunset at large. While Defendants argue that the above-identified representations are largely representations of future conditions, rather than past or then-existing facts, most of the alleged fraudulent statements relate to the Property's then-existing status (including whether repairs had been performed, whether the Property had active habitability violations, whether the Property had complied with the City orders, and whether Defendants had complied with City registration requirements).

Further, while Defendants argue that Plaintiff has not alleged specific facts showing that he justifiably relied on any particular representation by Defendants, Plaintiff alleges that he was "forced to rely" on Defendants' representations because he paid Defendants' excess rent demands in response to Defendants' threats of eviction and was delayed in his efforts to recover from Defendants. (SAC, at pp. 32-33 ¶ 161(b), (e); p. 36 ¶ 172.) These allegations specifically identify which actions Plaintiff took (paying excess rent sums) and refrained from

taking (pursuing litigation earlier) in reliance on Defendants' representations about the status and conditions of the Property. Whether Plaintiff's reliance on Defendants' representations was, in fact, reasonable under the circumstances is a factual question that is not appropriate to resolve on the pleadings.

Ultimately,

the Court finds that Plaintiff has now alleged sufficient facts to resolve the prior uncertainty in the FAC and to state a viable claim for fraud against Defendants. Therefore, Defendants' demurrer to Plaintiff's seventh cause of action for fraud is OVERRULED.

II. MOTION

TO STRIKE – DENIED

Defendants

move to strike Plaintiff's request for punitive damages from the SAC. (SAC, ¶¶ 1, 88, 125, 140, 158, 174-175;

Prayer, ¶ 4.) The Court finds, however, that the SAC has adequately resolved

the previously identified defects in Plaintiff's punitive damages request. Not only has Plaintiff now satisfied the requirements for pleading fraud, but Plaintiff also alleges that both

Defendants "acted with full knowledge" of and in "reckless disregard" for the

consequences of their conduct and the harm to Plaintiff, which together are sufficient

to demonstrate the requisite scienter for punitive damages. (Id. ¶¶ 125, 140.) Moreover, Plaintiff

also identifies that Silver, acting in his capacity as both an individual and

as a managing agent on behalf of West Sunset, knowingly acted with oppression, fraud, and malice. (Id. ¶ 140.) Plaintiff's new allegations resolve the prior group pleading concerns and adequately differentiate the conduct of Silver and West Sunset. When read in the context of the SAC as a whole, the Court finds that Plaintiff's new allegations are sufficient to state a request for punitive damages at the pleadings stage. (See Perkins v. Sup. Ct. (1981) 117 Cal.App.3d 1, 6 ["[t]he stricken language must be read not in isolation, but in the context of the facts alleged in the rest of petitioner's complaint."].)

Therefore,

Defendants' motion to strike the request for punitive damages is DENIED.

Defendants 3408 West Sunset Blvd., LLC and

Shawn G. Silver to serve notice of ruling. This tentative ruling ("TR") shall

be the order of the Court unless changed at the hearing and shall by this

reference be incorporated into the Minute Order.

TR emailed to counsel and posted to court

website on 9/23/26 at 11 a.m.

[1] On 6/29/2026, the Court rules on

Defendants' demurrer to the FAC, sustaining without leave to amend as to the 4th

cause of action, sustaining with leave to amend as to the 8th cause of action,

and overruling as to the 5th cause of action against both Defendants, while overruling as to the 1st, 2nd, 6th, and 7th causes of action against Defendant Silver. The Court also grants Defendants' motion to strike the punitive damages request with leave to amend.

[2] Plaintiff's fraud claim is labeled

as the eighth cause of action, but he only asserts seven total causes of action in the SAC after removing the nuisance claim from the FAC.